



**UNITED STATES MARINE CORPS
MARINE CORPS INSTALLATIONS NATIONAL CAPITAL REGION
MARINE CORPS BASE QUANTICO
2010 HENDERSON ROAD
QUANTICO, VIRGINIA 22134-5001**

IN REPLY REFER TO:
4200
C-21
M00264-25-JA-002

**JUSTIFICATION AND APPROVAL FOR
USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity

Marine Corps Installations Command National Capital Region – Regional Contracting Office (MCINCR-RCO), Quantico, VA 22134.

2. Description of Action Being Approved

Approval is requested to contract for the continued provision of specialized services for the Marine Corps Sports Medicine and Injury Prevention (SMIP) program using other than full and open competition procedures. This is a non-competitive action to award a firm-fixed-price (FFP) contract for a base period of three month, plus two, one-month options in accordance with FAR clause 52.217-9 while a Government Accountability Office (GAO) protest is resolved concerning the long-term contract intended to provide the services covered by this non-competitive action. The contractor for this effort is Cognito Systems, LLC (“Cognito”), 2501 Marshall Ave STE E, Newport News, VA 23607-4636.

3. Description of Supplies / Services

The Marine Corps requires the continuity and sustainment of the Sports Medicine Injury Prevention (SMIP) program services providing certified Athletic Trainer and Strength and Conditioning Specialist services to support worldwide Athletic Training and Strength and Conditioning Specialist services within Marine Operating Forces (OPFOR) Formations. Services include integrated, performance-based strength and conditioning programs, rehabilitative, and injury preventative programs that will reduce injuries, attrition and lost workdays associated with musculoskeletal injuries, and accelerate the return to duty of those encumbered by performance related injuries.

Services are provided at following locations:

- Yuma, AZ
- California: 29 Palms, Bridgeport, Camp Horno, Camp Mateo, Del Mar, Miramar, Pendleton, San Diego
- NAS Pensacola, FL
- Kaneohe Bay, HI
- Iwakuni, JPN

- Mardet Ft. Leonardwood, MO
- North Carolina: Cherry Point, Lejeune, New River
- Ft. Sill, OK
- Okinawa: Camp Courtney, Camp Foster, Camp Hansen, Camp Kinser, Camp Schwab, Futenma
- South Carolina: Beaufort, Parris Island
- Quantico, VA

The period of performance requested is for a three-month base period, plus two, one-month options in accordance with FAR clause 52.217-9. The total estimated value is [REDACTED] as shown below:

Estimated Dollar Value

Base Period (3 mos)	Months 2-3	Travel	Total
[REDACTED] per month)	[REDACTED]	[REDACTED]	[REDACTED]

4. Statutory Authority Permitting Other Than full and Open Competition

The statutory authority permitting this sole source acquisition is 41 U.S.C. § 1901(e)(2), as implemented by FAR 13.501(a).

5. Rationale Justifying Use of Cited Statutory Authority

This non-competitive action is required to continue to provide certified Athletic Trainer and Strength and Conditioning Specialist services to the Fleet Marine Force (FMF) under the TECOM Human Performance Division Sports Medicine Injury Prevention (SMIP) program. The Government's intent is to satisfy this requirement through a contract awarded to Cognito under a small business set-aside competition under solicitation M00264-22-R-0008. However, that contract is presently stayed due to the GAO protest referenced above, requiring this sole source effort. Accordingly, this non-competitive action is for a total of five months, allowing 100 days of service while the GAO protest is adjudicated and two optional months to determine the way forward if GAO does not rule in favor of the Government.

The SMIP program provides integrated, performance-based strength and conditioning, rehabilitation, and injury preventative programs that reduce injuries and attrition associated with musculoskeletal injuries to Marines across the FMF. Without these services Marines are immediately at higher risk of musculoskeletal injuries and previously injured Marines will be delayed in their recovery, degrading the Marine Corps' short and long-term operational readiness. There are no feasible alternatives to continuation of contracted support, [REDACTED]

Only Cognito, the incumbent contractor, currently has nearly all the required athletic trainer personnel on-hand with active Tier 3 (T3) clearances, completed DoD medical credentialing, electronic medical record (i.e., AMHS GENESIS) access, and active Marine Corps Enterprise Network (MCEN) accounts to meet this essential requirement immediately without delay to services. These components are critical to providing the full services, and delays obtaining the required credentials, such as T3 clearance, may last

up to 6 months. Cognito was awarded the contract on 14 November 2024 which resulted in the first GAO protest received on 2 December 2024 halting services. The Government endured a lapse in services until the requirement was restarted 11 February 2025. The longer the Marine Corps is absent these services the higher injury rates will climb, the fewer Marines will be able to train and deploy, and the greater combat effectiveness will be negatively impacted.

Award to any other company would result in additional unacceptable service delays, which could take up to six months, due to the required transition time necessary to recruit, hire, vet, and onboard personnel. Even if another company were able to hire the personnel presently employed by Cognito, avoiding some of the delays of bringing new staff onto a Government contract, this would still delay the services due to the time needed to transition the personnel to a new employer. Then, if the Government prevails in the GAO protest, the personnel would need to transition *back* to Cognito for work under the original contract award, again incurring delays. Moreover, this uncertainty and shifting of employment damages the retention of staff, leading to losses of personnel and the need to retain new personnel and have them go through the lengthy vetting/credentialing process. More new personnel would then need to bring themselves up to speed on Marines' records, increasing the difficulty of achieving routine and streamlined treatment.

Finally, competing this bridge requirement is not a viable solution. Seeking competition is expected to take at least the entire five months of the bridge contract's period of performance. This is due to the time needed to solicit, review, and evaluate proposals, prepare the necessary contract and award documents, and make an award. Further, based on the procurement history of the protested contract (five GAO protests and three Small Business Administration protests), which the Government originally solicited in 2022, there is no reasonable expectation that the Government can competitively award this bridge requirement within the five-month timeframe the services are needed.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Possible.

The Government solicited for these services under M00264-22-R-0008, with [REDACTED] proposals received and one selected for award and performance, followed by a GAO protest halting all services. As explained in paragraph 5 above, there are no other known sources who can immediately provide the required services without resulting in unacceptable delays in fulfilling the agency's requirements; however, as previously stated, the contracting activity has solicited and awarded a follow-on competitive contract for these services via competition limited to small businesses. The Government intends to provide notice of the action being approved by this Justification by publishing a synopsis of the action in accordance with FAR 5.203.

The goal of this action is to ensure uninterrupted services are provided while the protest filed via GAO is resolved.

ADC I&L (Contracts) issued a blanket waiver of the requirement at DFARS PGI 206.302-1(d) for bridge contracts on 23 December 2020 (SUBJ: Blanket Waiver of DFARS PGI 206.302-1(d) for Bridge Contracts). This memorandum applies to this action and waives any requirement to issue a request for information or sources sought notice in connection with FAR 6.302-1.

7. Determination of Fair and Reasonable Cost

The Contracting Officer determines that the anticipated cost to the Government for the services covered under this J&A will be fair and reasonable.

8. Description of Market Research Conducted

Due to the limited time available to award a short-term contract to prevent an extended gap in services the Government reviewed the current contract/task order and the proposals received under the most recent acquisition effort (solicitation M00264-22-R-0008) as market research for this action.

9. Actions Taken to Remove Barriers to Future competition

The Government conducted a small business set-aside competitive acquisition for the protested contract award that required the use of this Justification and Approval. There are no inherent barriers to competition; provided, the immediate need for interim services prompted by the GAO protest severely limits contractors that can immediately perform, resulting in this sole source procurement action.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]